

Track 1 — Chapter Build Pass

MPEP Chapter 2200 · Citation of Prior Art and Ex Parte Reexamination

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Challenging an Issued Patent Through the Examining Corps

Chapter 2200 is about the SNQ threshold, who can request reexamination, and how sharply limited a third-party requester's role becomes once the process starts — the exam likes testing exactly these boundary lines against the more adversarial PTAB proceedings.

Rule 1: Basis for Reexamination: Substantial New Question (§2242)

PLAIN ENGLISH

Ex parte reexamination can only be requested based on **patents or printed publications** (not public use, on-sale activity, or other §102 categories that aren't documentary) that raise a **substantial new question of patentability (SNQ)** — meaning a reasonable examiner would consider the art important in deciding patentability, and it wasn't previously considered and resolved in a way that forecloses the question (though art previously cited/considered can still, in some circumstances, raise a new question if applied in a new way).

EXAMPLE

A request for reexamination based on a public-use activity the requester witnessed (not a patent or printed publication) would be improper — reexamination is limited to documentary prior art, unlike an obviousness argument in litigation which could rely on any §102 category.

QUIZ

Ex parte reexamination requests must be based on:

- (A) Any type of prior art, including public use
- (B) Only patents or printed publications
- (C) Only prior art not available to the original examiner for any reason
- (D) Only evidence of on-sale activity

Rule 2: Who Can Request Reexamination (§2211-2212)

PLAIN ENGLISH

Any person — including the patent owner, a third party, or even anonymously (with limits) — can request ex parte reexamination. The **USPTO Director can also order reexamination sua sponte** (on their own initiative). Unlike inter partes review at the PTAB, ex parte reexamination gives the third-party requester very limited ongoing participation rights after the initial request.

EXAMPLE

A third-party competitor who discovers a strong prior art reference can request ex parte reexamination without needing to be sued or have any personal stake beyond wanting the patent's validity reconsidered — but once the request is filed, their participation in the proceeding itself is limited going forward.

QUIZ

After filing an ex parte reexamination request, how much ongoing participation does a third-party requester generally have in the proceeding itself?

- (A) Full, unlimited participation like a co-party throughout
- (B) Very limited — participation is largely confined to specific points, unlike inter partes proceedings
- (C) None whatsoever, not even the initial request
- (D) Only the patent owner can ever request reexamination

Rule 3: Order Granting/Denying Reexamination (§2247)

PLAIN ENGLISH

After a reexamination request, the Office issues a decision on whether the SNQ standard is met. If granted, an **Office action** issues (often with the order) and reexamination proceeds like a second examination of the affected claims. If denied, the reexamination doesn't proceed on that basis, though a new request could be filed with different art.

EXAMPLE

If a reexamination request is denied because the cited reference doesn't raise a substantial new question (e.g., it's cumulative of art already considered and resolved), the patent remains as issued, though the requester (or anyone else) could file a new request based on different, stronger art.

QUIZ

If a reexamination request is denied for failing to raise a substantial new question, what happens?

- (A) The patent is automatically invalidated
- (B) Reexamination doesn't proceed on that request, though a new request with different art is possible
- (C) The requester is barred from ever filing again on any patent
- (D) The patent owner must pay a penalty

Rule 4: Reexamination Certificate & Effect on Claims (§2287)

PLAIN ENGLISH

At the conclusion of reexamination, the Office issues a **reexamination certificate** confirming, canceling, or amending claims. Amended or new claims from reexamination generally only have effect prospectively (from the certificate's issuance) for infringement purposes, absent "intervening rights" protections for those who relied on the prior claim scope — similar in concept to reissue.

EXAMPLE

If reexamination results in a narrowed claim, someone who began using the originally (broader) claimed subject matter before the certificate issued may have intervening rights protecting their prior activity, much like the intervening rights doctrine in reissue.

QUIZ

What does a reexamination certificate reflect at the conclusion of the proceeding?

- (A) A brand new patent number entirely unrelated to the original
 - (B) Confirmation, cancellation, or amendment of the reexamined claims
 - (C) Automatic invalidation of the entire patent regardless of outcome
 - (D) A change in the original patent's filing date
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Rule 5: Reexamination vs. Reissue vs. Inter Partes Review — Quick Distinctions

PLAIN ENGLISH

Keep these correction/challenge mechanisms straight: **reissue** (patentee-only, broad range of correctable errors, 2-year limit on broadening); **ex parte reexamination** (any party, patents/printed publications only, SNQ standard, limited third-party participation, handled by the examining corps); **inter partes review** (a PTAB trial proceeding, third-party-initiated, different standard and procedure, beyond MPEP Chapter 2200's ex parte reexamination scope but worth knowing as the contrast case).

EXAMPLE

A third party wanting an active, ongoing adversarial role challenging a patent's validity (with discovery, oral argument, and full participation) would look to inter partes review at the PTAB rather than ex parte reexamination, which sidelines the requester after the initial filing.

QUIZ

Which of these correction/challenge mechanisms is limited to patents and printed publications as the basis, with limited ongoing third-party participation after the initial request?

- (A) Reissue
 - (B) Ex parte reexamination
 - (C) Inter partes review
 - (D) A certificate of correction
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A third party requests reexamination based on evidence of a public demonstration of the invention before the critical date (not a patent or printed publication). Is this a proper basis for ex parte reexamination?

- (A) Yes, any prior art qualifies
- (B) No — reexamination is limited to patents and printed publications
- (C) Yes, if notarized
- (D) No, only the patent owner can raise public use evidence

2. Who may request ex parte reexamination of a patent?

- (A) Only the patent owner
- (B) Any person, including third parties, plus the Director sua sponte
- (C) Only a federal court
- (D) Only a co-inventor

3. What is the effect of a denial of a reexamination request for failing to raise an SNQ?

- (A) The patent is permanently immune from all future reexamination
- (B) That request doesn't proceed, but a new request with stronger/different art remains possible
- (C) The patent owner must file a reissue instead
- (D) The requester must pay the patent owner's fees

4. What document concludes a reexamination proceeding, reflecting the final status of the claims?

- (A) A certificate of correction
- (B) A reexamination certificate
- (C) A Notice of Allowance
- (D) A terminal disclaimer

5. True or False: Third-party requesters in ex parte reexamination have the same ongoing participation rights as parties in inter partes review.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Reexamination basis limited to **patents and printed publications** only — no public use/on-sale/other §102 categories.
- **Substantial New Question (SNQ)** of patentability is the threshold standard.
- **Anyone** can request (including anonymously, with limits) — plus Director-initiated (sua sponte) reexamination.
- "Ex parte" = **limited ongoing third-party participation** after the request is filed — contrast with inter partes review.
- Concludes with a **reexamination certificate** confirming/canceling/amending claims; watch for intervening rights on amended claims.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Basis for Reexamination: Substantial New Question (§2242)

Ex parte reexamination requests must be based on:

Answer: B

Reexamination's scope is narrower than general invalidity grounds — limited strictly to documentary prior art (patents and printed publications), not public use/on-sale/other §102 categories.

Rule 2: Who Can Request Reexamination (§2211-2212)

After filing an ex parte reexamination request, how much ongoing participation does a third-party requester generally have in the proceeding itself?

Answer: B

"Ex parte" in the name reflects this: after the request is filed, the process is conducted largely between the Office and the patent owner, with limited third-party requester participation — a key contrast with inter partes proceedings.

Rule 3: Order Granting/Denying Reexamination (§2247)

If a reexamination request is denied for failing to raise a substantial new question, what happens?

Answer: B

A denial simply means that specific request didn't meet the SNQ threshold — it doesn't bar future requests based on different, more compelling art.

Rule 4: Reexamination Certificate & Effect on Claims (§2287)

What does a reexamination certificate reflect at the conclusion of the proceeding?

Answer: B

The certificate documents the final outcome for each claim — confirmed, canceled, or amended — concluding the reexamination proceeding.

Rule 5: Reexamination vs. Reissue vs. Inter Partes Review — Quick Distinctions

Which of these correction/challenge mechanisms is limited to patents and printed publications as the basis, with limited ongoing third-party participation after the initial request?

Answer: B

This description matches ex parte reexamination precisely — the documentary-art-only limitation plus limited requester participation are its defining, testable features.

Chapter Close-Out Quiz

1. (B)

Public use/demonstration evidence isn't a patent or printed publication, so it can't form the basis of an ex parte reexamination request, regardless of how strong the evidence is.

2. (B)

Reexamination is broadly available — any person can request it, and the Director can also initiate it without a third-party request.

3. (B)

A denial is specific to that request's showing — it doesn't foreclose a future request built on different or stronger documentary art.

4. (B)

The reexamination certificate is the formal document confirming, canceling, or amending claims at the end of the process.

5. (B) False

Ex parte reexamination sharply limits third-party requester participation after filing — a key distinguishing feature from the more adversarial inter partes review process at the PTAB.

End of Chapter 2200 (Reexamination). Next: Chapter 2300 (Interference and Derivation Proceedings) — the final chapter in this build.